

DELHI POLICE

**STANDING ORDER NO.140
SUPPLY OF COPY OF FIR TO INFORMANTS**

Instances have come to notice that the copy of the report regarding cognizable/ non- cognizable offences recorded at police stations, are not supplied to the informant/complainants, although it is incumbent upon the officers recording such reports to do so under section 154(1) & (2) Cr.P.C.

2. Attention of all concerned is also drawn to the following provisions in the Punjab Police Rules, which are also relevant on the subject .

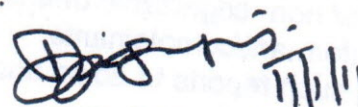
- (i) "As per P.P.R. 24.3 when the information relates to a non-cognizable offence it shall be briefly but intelligibly recorded in the non-cognizable register and shall be signed, sealed or marked by the person making it on both foil and the counter-foil. A copy of the entry in this register made by the copying process and signed and sealed with the police station seal by the recording officer, shall be made over to the informant, who shall refer it to the Magistrate in accordance with section 155 of the Cr.P.C.'
- (ii) "P.P.R. 24.5 enjoins that one copy of the-FIR shall be given to the complaint unless a written report in form 24.2(1) has been received in which case the check receipt described will be sent."

3. It is incumbent on the Duty Officer to ensure registration of FIR in a proper and correct form and content. FIRs whether entered by him/her personally or through the CIPA Operator must invariably bear the signature of the Duty Officer. In cases where it is not possible for the complainant or the IO to be present at the Police Station to get the FIR registered in person, Duty Officer must ensure recording of the FIR on the basis of the "Rukka" verbatim and must sign the FIR himself/herself.

4. To ensure compliance of the above mentioned mandatory provisions, in future, the officer recording the FIR shall endorse a certificate on the police station copy of every FIR indicating that a copy of the FIR has been given to the informant free of cost. Signatures of the informant/complainant in token of having received the copy shall also be taken. A copy of FIR shall be sent by post through UPC in case of non availability of the complainant and case is registered

either on the written complaint received in the PS or on the basis of a "Rukka" sent by Emergency Officer. In this regard, FIR Despatch Register shall be maintained in the Police Station and should be kept in the Record Room. In case where (Berbayan) FIR is registered signature of complainant be obtained in column No.2 of the DD Entry. Failure to comply with these instructions shall entail disciplinary action.

5. This supersedes Standing Order No.140 issued vide this Hdqrs.No.24212-450/C&T(AC-IV)/PHQ dated 13.04.1989.



(B.K. Gupta)
Commissioner of Police,
Delhi.

Order Book No. 01 /Record Branch (PHQ)

No. 01-250 /Record Br. 250 /PHQ dated Delhi 11-1 /2011

Copy for information and necessary action to:-

1. All Special Commissioners of Police, including MD/DPHC, Delhi.
2. All Joint Commissioners of Police, Delhi.
3. All Additional Commissioners of Police, including Principal/PTC, Delhi.
4. All Deputy Commissioners of Police of Districts/Units, including FRRO, Delhi/New Delhi.
5. SO to Commissioner of Police, LA to Commissioner of Police, Delhi.
6. All ACsP in PHQ, 1-1-11
7. ACP/I.T. Centre.
8. All ACsP/SHOs in Delhi.
9. All Inspectors/PHQ, including Reader to C.P. Delhi.
10. HAR/PHQ with 10 spare copies.
11. Librarian/PHQ.